

The Bhilsa Ramlila Fair Act, 1956

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State of Madhya Pradesh - Act

The Bhilsa Ramlila Fair Act, 1956

MADHYA PRADESH

India

The Bhilsa Ramlila Fair Act, 1956

Act 21 of 1956

Published on 17 October 1956

Commenced on 17 October 1956

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The Bhilsa Ramlila Fair Act, 1956

(No. 21 of 1956)

[Dated 17th October, 1956]

Received the assent of H.H. the Rajpramukh on 17th October, 1956.

An act to regularise the realization of rent levied for land in the Fair Area and to provide for the better management and control of the Ramlila Fair held annually at Bhilsa.

Be it enacted in the Seventh Year of the Republic of India as follows:-

1.

Short title and commencement.

(1)

This Act may be called The Bhilsa Ramlila Fair Act, 1956.

(2)

It shall come into force immediately on its publication in the Gazette.

2.

Appointment of Ramlila Fair Committee.

(1)

The Government may, by notification in the Gazette, appoint a Committee to be called the Bhilsa Ramlila Fair Committee consisting of-

(i)

the Collector of the Bhilsa District who shall be its Chairman;

(ii)

two persons nominated by the Government; and

[(ii-a) two Councillors nominated by Municipal Council, Vidisha;]

[Inserted by M.P Act No. 68 of 1976.]

(iii)

six persons nominated, from time to time, by Shri Ramlila Sabha (Registered) Bhilsa : provided the Secretary of the said Sabha shall always be one of the persons so nominated.

(2)

[The persons nominated under clauses (ii), (ii-a) and (iii) of sub-section (1), shall hold office for a period of three years : Provided that a member of the Ramlila Committee nominated under clause (ii-a) of sub-section (1) shall cease to hold office as such member if he ceases to be a Councillor of the Municipal Council, Vidisha.]

[Substituted by Madhya Pradesh Act No 68 of 1976.]

3.

Ramlila Fair area.

- The Government may, having due regard to the requirements of the fair and the area at present used for the purpose of the fair, by notification in the Gazette, from time to time, define the local limits of the area to be called the Bhilsa Ramlila Fair Area.

4.

Levy of rent by the Ramlila Fair Committee.

- Notwithstanding anything contained in the Municipal Act or any other law for the time being in force in the Bhilsa Ramlila Area, the Bhilsa Ramlila Fair Committee may, during the period of the fair which shall be notified by the Government in the Gazette levy such rent for the land comprised in the said area as may be specified in the bye-laws to be framed by the said Committee with the approval of the Government.

5.

Management and Control of Bhilsa Ramlila Fair.

- As soon as the Bhilsa Ramlila Committee is appointed by the Government under Section 2, the management and control of the Bhilsa Ramlila Fair and the assets and liabilities of the Ramlila Committee, if any, functioning at the time of its appointment together with all funds, if any, shall pass on and be vested in the Committee so appointed.

6.

Bhilsa Ramlila Fair Committee to have a perpetual succession and a common seal.

- The Bhilsa Ramlila Fair Committee shall have a perpetual succession and a common seal and shall sue and be sued by the same name.

7.

Ramlila Fund.

(1)

All moneys realized by or income accruing to the Bhilsa Ramlila Fair Committee shall be credited to a fund to be called the Bhilsa Ramlila Fund.

(2)

This fund shall not be utilised for any purpose other than that of the Ramlila or its fair or that of improving or developing the fair. The money of the fund shall be deposited either in a Schedule Bank or Co-operative Bank at Bhilsa.

(3)

The fund shall be operated upon under the signatures of the Chairman of the Bhilsa Ramlila Fair Committee or under

that of the Secretary of the Committee if specially authorised in this behalf by the Chairman.

8.

The Appointment of the Secretary and other officials.

(1)

The Secretary of the Bhilsa Ramlila Fair Committee shall be appointed by the Government. Other Officials of the Committee may be appointed by the Committee in accordance with the bye-laws made in this behalf by the Committee.

(2)

The Secretary shall maintain a record of all the proceedings of the meetings of the Committee in accordance with the bye-laws framed by the Committee and shall perform all duties entrusted to him by the Committee. He shall be present at all the meetings of the Committee but shall have no power to vote. He shall be responsible for maintaining all the accounts of the Committee and getting them duly audited by a chartered accountant.

9.

Arrears of rent how to be recovered.

- The arrears of rent levied under Section 4 shall be recoverable as arrears of land revenue.

10.

Quorum.

- The Chairman and two members shall form the quorum:

Provided that in the absence of the Chairman from any meeting any other member nominated in that behalf by the Chairman shall function as Chairman in that meeting.

11.

Immunity of members.

- No suit or other legal proceedings shall be brought against any member of the Bhilsa Ramlila Fair Committee for any act done or purporting to have been done by him in good faith in performance of his duties as such member, nor shall he be personally liable for any act or omission of the said Committee.

12.

Power of Committee to frame bye-laws.

- The Bhilsa Ramlila Fair Committee may, with the approval of the Government, from time to time, frame bye-laws for regulating its procedure or for the management and control of the fair or for levying any fee or tax therein. Such bye-laws shall come into force on their publication in the Gazette.

13.

Rules.

- The Government may, from time to time, make rules for carrying out the purposes of this Act, Such rules shall be subject to their previous publication in the Gazette.

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